

2	25-01496788 <i>Assaf vs. Lowtemp</i>	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Response to Requests for Admissions <u>Motion No. 1</u> Plaintiff Adnan Assaf’s motion to compel defendant Rocky Lowtemp to provide responses to Plaintiff’s Form Interrogatories, Set One, is DENIED. The proof of service shows Plaintiff served Form Interrogatories, Set One, on Defendant who is appearing in <i>pro per</i> on 11-25-25 via email. (Soliman Decl., ¶ 4, Ex. 1.) There is no proof that Defendant consented to being served by electronic mail. Without express consent as required by Code of Civil Procedure section 1010.6, subdivision (c), service of the Form Interrogatories, Set One, by electronic mail on Defendant was insufficient. Plaintiff to give notice. <u>Motion No. 2:</u> Plaintiff Adnan Assaf’s motion for an order establishing admissions of defendant Rocky Lowtemp for failure to provide responses to Plaintiff’s Requests for Admission, Set One, is DENIED. The proof of service shows Plaintiff served Requests for Admission, Set One, on Defendant who is appearing in <i>pro per</i> on 11-25-25 via email. (Soliman Decl., ¶ 4, Ex. 1.) There is no proof that Defendant consented to being served by electronic mail. Without express consent as required by Code of Civil Procedure section 1010.6, subdivision (c), service of the Requests for Admission, Set One, by electronic mail on Defendant was insufficient. Plaintiff to give notice.
3	23-01313302 <i>Carmona vs. Mazella New Tech Corporation</i>	Motion for Summary Judgment and/or Adjudication Cross-Defendant OC Metals, Inc.’s (“OC Metals”) motion for summary judgment or, in the alternative, summary adjudication as to the Cross-Complaint of Mazzella New Tech Corporation (“Mazzella”) is CONTINUED to _____. It appears Mazzella filed an opposition to the wrong motion for summary judgment/adjudication (“MSJ”). OC Metals filed one MSJ against Plaintiff on the Complaint (ROA 248) and filed a separate MSJ against Mazzella on Mazella’s Cross-Complaint against OC Metals. (ROA 335.) On 7/10/26, Mazella filed its opposition to OC Metals MSJ, Response to Separate Statement; and Evidentiary Objections to OC Metals’ evidence. (ROA 418, 420, 431.) Although Mazella filed a Response to OC Metals’ Separate Statement, Mazella’s Responsive Separate Statement responds to OC Metals’ Separate Statement in support of its MSJ against Plaintiff and not OC